



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

JAN 31 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11788
(FIRST REVISION)

EXPIRATION DATE: April 1, 1997

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. **GRANTEE:** The Steel Shipping Container Institute, (SSCI) on behalf of its U.S. member companies (see Appendix A of this exemption) Washington, D.C.
2. **PURPOSE AND LIMITATION:** This emergency exemption authorizes a 1996 date of manufacture on UN1A1 and UN1A2 drums constructed with a minimum thickness of 0.82 mm body and 1.09 mm heads and manufactured between December 31, 1996 and April 1, 1997. The authorization to mark a 1996 date of manufacture on the drums makes them eligible for reuse in accordance with regulations in effect prior to January 1, 1997.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** The marking requirements in 49 CFR 172.301(c), 172.203(a), and the year of manufacture marking required in 49 CFR 178.503(a)(6).
5. **BASIS:** This exemption is based on the application of the SSCI dated December 11, 1996, submitted in accordance with 49 CFR 107.117 and a determination that it is necessary to preclude a serious economic loss.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Those hazardous materials authorized to be shipped in UN1A1 and UN1A2 steel drums	As appropri ate	As appropri ate	As appropri ate

7. PACKAGING AND SAFETY CONTROL MEASURES: Packaging prescribed are UN1A1 and UN1A2 steel drums with a maximum capacity of not over 220 liters (55 gallons) manufactured during January through March 1997 which are marked with a 1996 manufacturing date so that they are authorized for reuse. No new construction is authorized under this exemption after March 31, 1997.
8. SPECIAL PROVISIONS:
 - a. Offerors for transportation of the hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.
 - b. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals for a specific manufacturing facility.
 - c. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.
 - d. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
 - e. MARKING - Drums must be marked in accordance with the appropriate UN specification. The marking requirements of 49 CFR 172.301(c) and 172.203(a) are waived.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo only aircraft, and passenger aircraft.
10. MODAL REQUIREMENTS: No modal specific requirements are required by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 31 1997

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA, FRA, FAA, USCG
PO: JSH

JAN 31 1997

Continuation DOT-E 11788 (1st Rev.)

Page 4

APPENDIX A

MEMBERS OF THE STEEL SHIPPING CONTAINER INSTITUTE

Astro Container Company
Evendale, OH

Berenfield Containers, Inc.
Mason, OH

Chicago Steel Container Corp.
Chicago, IL

Cleveland Steel Container Corp.
Cleveland, OH

Columbus Steel Drum Co.
Blacklick, OH

CP Louisiana, Inc.
New Orleans, LA

Evans Industries, Inc.
Harvey, LA

General Steel Drum Corp.
Charlotte, NC

Meyer Steel Drum, Inc.
Chicago, IL

Myers Container Corporation
(Division of Imacc corp.)
Emeryville, CA

Nesco Container Corporation
Fenton, MO

North Coast Container Corp.
Cleveland, OH

Sirco Systems, Inc.
Birmingham, AL

Trilla Steel Drum Corp.
Chicago, IL

Van Leer Containers, Inc.
Chicago, IL